

ELIZABETH II



1970 CHAPTER liv

An Act to confer further powers upon the West Hertfordshire Main Drainage Authority; to extend the sewerage district of that Authority; and for other purposes.
[23rd July 1970]

WHEREAS—

(1) The West Hertfordshire Main Drainage Authority (hereinafter called “the Authority”) was constituted in the name of the Colne Valley Sewerage Board by the Hertfordshire County Council (Colne Valley Sewerage &c.) Act 1937 (hereinafter called 1937 c. lxxxix. “the Act of 1937”) for the purpose of constructing main sewers and other works for the disposal of sewage and to provide for a general scheme for the effectual drainage of an area comprising all or part of the city of St. Albans, the boroughs of Hemel Hempstead and Watford, the urban districts of Barnet, Bushey, Chorleywood, Great Berkhamstead, Rickmansworth and Tring and the rural districts of Barnet, Berkhamstead, Hatfield, Hemel Hempstead, St. Albans and Watford in the county of Hertford,

the urban district of Chesham and the rural district of Amersham in the county of Buckingham and the urban district of Potters Bar in the former county of Middlesex:

(2) By various orders made under the Act of 1937 further powers have been conferred upon the Authority and its constitution altered and, by the West Hertfordshire Main Drainage Order 1959, the name of the Authority was changed to the West Hertfordshire Main Drainage Authority:

(3) By agreement between the Authority and the rural district council of Hatfield the Authority has, since 1954, been responsible for the reception and disposal of sewage from an area forming part of the parish of Hatfield in the said rural district outside the sewerage district as provided in the Act of 1937, and it is expedient to extend the sewerage district of the Authority to include the said area and to make such other provision as is contained in this Act as to the extent of the sewerage district of the Authority:

(4) It is expedient that financial provisions applicable to local authorities relating to a consolidated loans fund and renewal and repairs fund should be extended to the Authority and that further provision should be made relating to the administration and finances of the Authority:

(5) It is expedient that the further powers proposed in this Act should be conferred upon the Authority and that the other provisions in this Act should be enacted:

(6) The purposes of this Act cannot be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Short title.

1.—(1) This Act may be cited as the West Hertfordshire Main Drainage Act 1970.

(2) The West Hertfordshire Main Drainage Act and Orders 1937 to 1967 and this Act may be cited together as the West Hertfordshire Main Drainage Acts and Orders 1937 to 1970.

2.—(1) In this Act unless the context otherwise requires— Interpretation.

“ Act of 1936 ” means the Public Health Act 1936; 1936 c. 49.

“ Act of 1937 ” means the Hertfordshire County Council
(Colne Valley Sewerage &c.) Act 1937; 1937 c. lxxxix.

“ Authority ” means the West Hertfordshire Main Drainage
Authority;

“ Minister ” means the Minister of Housing and Local
Government;

“ signed map ” means the map signed in quadruplicate by
Harry Gourlay, the Chairman of the Committee of
the House of Commons, to which the Bill for this Act
was referred, one copy of which has been deposited in
the office of the Clerk of the Parliaments in the House
of Lords, one in the Private Bill Office of the House of
Commons, one with the clerk of the Hertfordshire
County Council and one with the clerk of the Authority;

“ undertaking ” means the undertaking of the Authority as
for the time being authorised by any enactment;

and other expressions to which meanings are assigned by the Act
of 1937 have the same respective meanings.

(2) Unless the context otherwise requires, references in this
Act to any enactment shall be construed as references to that
enactment as applied, extended, varied or amended by, or having
effect by virtue of, any subsequent enactment, including this Act.

3.—(1) On and from the 1st April, 1970, the sewerage district Extension of
of the Authority as defined in the Act of 1937 shall be extended to sewerage
include— district.

(a) the areas at Ellenbrook, Roe Green and Bell Bar in the
parish of Hatfield in the rural district of Hatfield in
the county of Hertford shown coloured red on the
signed map; and

(b) the parish of Sarratt in the rural district of Watford in
the county of Hertford.

(2) To give effect to the provisions of subsection (1) of this
section and of the Colne Valley Sewerage Order 1939 (which
extended the sewerage district of the Authority to include part of
the parish of Sarratt in the rural district of Watford in the county
of Hertford, added to the urban district of Chorleywood in the
said county by the County of Hertford (Chorleywood Urban
District Extension) Confirmation Order 1938), Schedule 1 to the
Act of 1937 shall be amended as follows:—

For the words “ The rural district of Watford (except the
parish of Sarratt) ” there shall be substituted the words

“ The rural district of Watford ”, and for the words “ In the rural district of Hatfield—The parish of North Mimms ” there shall be substituted the words “ In the rural district of Hatfield—The parish of North Mymms and so much of the parish of Hatfield as is specified in subsection (1) of section 3 of the West Hertfordshire Main Drainage Act 1970 ”.

Consolidated
loans fund
and renewal
and repairs
fund.

4. Section 117 (Application of general enactments) of, and Schedule 5 to, the Act of 1937 shall have effect as if there were inserted at the end of the said schedule reference to the following enactments and modifications thereof:—

1953 c. 26.

“ The Local Government
(Miscellaneous Provi-
sions) Act 1953—

Section 1 (Power to local
authorities to estab-
lish certain special
funds)

Paragraph (a) of subsection (1) and subsection (2) not to apply; and for the reference in subsection (3) to the general rate fund reference to the common fund of the Authority to be substituted.

Section 3 (Renewal and
repairs funds)

Subsection (3) not to apply; for the reference in subsection (1) to the general rate fund reference to the common fund of the Authority to be substituted; and for subsection (2) the following subsection to be substituted:—

“ (2) No payment shall be made by a local authority into any such renewal and repairs fund in any year exceeding a sum equal to 0.375 per centum of the capital expenditure theretofore incurred upon the undertaking or so as to make the fund exceed a sum equal to 1.5 per centum of the said capital expenditure or such other sum as the Minister may from time to time determine ”.

The Local Government Act
1958—

1958 c. 55.

Section 55 (Consolidated loans funds) To apply as if the Authority were the council of a county district having a population of sixty thousand or more."

5. In addition to the powers conferred on the Authority by section 33 of the Act of 1937 for the provision of dwelling-houses for persons employed by them, the Authority shall have power to make advances to, and to guarantee the repayment of advances made to, persons who are in their employment or who propose to enter their employment for the provision of dwellinghouses for such persons, in accordance with the provisions of sections 43 and 45 of the Housing (Financial Provisions) Act 1958, as amended by section 3 of the House Purchase and Housing Act 1959, and the said provisions and Part II of the Housing Subsidies Act 1967, shall, subject to any necessary modifications, apply to the Authority as if they were a county council.

Housing advances to employees.

1958 c. 42.

1959 c. 33.

1967 c. 29.

6. The Authority may supply or sell or otherwise dispose of any sludge or any other product from the treatment of sewage and for this purpose may process it and acquire other materials for processing with it, and may carry on all such activities as may be necessary or convenient for, or in connection with, the exercise of their powers under this subsection:

Disposal of sludge, etc.

Provided that any agreement made by the Authority in pursuance of the powers conferred by this subsection for the supply, sale or disposal of sludge or other product from the treatment of sewage shall not, without the consent of the Minister, be entered into for a term exceeding five years.

7.—(1) Where under the Act of 1936 plans of a building or of an extension of a building are, in accordance with building regulations, deposited with a constituent authority and it is proposed to erect the building or the extension (as the case may be) over any sewer vested in the Authority which is shown on the map of sewers required by section 70 (Map of sewerage district to be made) of the Act of 1937 to be supplied to the constituent authority, the constituent authority shall forthwith notify the Authority and in making their decision under section 25 of the Act of 1936 shall give effect to any representations made by the Authority:

Buildings not to be erected over sewers without consent.

Provided that the amount of any compensation payable to any person by reason of the exercise by any constituent authority of the powers of the said section 25 in relation to any sewer vested in the Authority shall be repaid to such authority by the Authority.

1962 c. 38.

(2) Where an application for planning permission submitted to the local planning authority under the Town and Country Planning Act 1962 shows an intention to erect any building over any such sewer, the local planning authority shall forthwith notify the Authority.

(3) Section 58 (Application of section 25 of Act of 1936 to sewers of Board) of the Act of 1937 is hereby repealed.

Power to
require
information
as to
ownership of
land.

8.—(1) The Authority may, for the purpose of enabling them to perform any of their functions under any enactment in force at the passing of this Act under which the Authority are or may be authorised to acquire land compulsorily or to lay sewers or pipes or execute other works on land, require—

- (i) the occupier of, and any person having an interest in, any land, and any person who, either directly or indirectly, receives rent in respect of any land, to state in writing the nature of his interest therein and the name and address of any other person known to him as having an interest in that land, whether as freeholder, mortgagee, lessee or otherwise, and the name and address of any person known to him to receive either directly or indirectly the rent in respect of that land; and
- (ii) any person who has sold, or otherwise disposed of, leased or let any land to state in writing the name and address of the person to whom he has sold, or otherwise disposed of, leased or let that land.

(2) Any person who, having been required by the Authority under this section to give to them any information, fails to give that information, or knowingly makes any misstatement in respect thereof, shall be liable to a fine not exceeding twenty pounds.

(3) In this section—

“land” means any corporeal hereditament, including a building, and includes any interest in, or right over, land;

“interest” includes any legal estate or interest in land or in any rentcharge issuing out of land.

Power to
change
titles of
officers.

9.—(1) Notwithstanding anything in the Act of 1937, or in any other enactment, the Authority may from time to time by resolution determine that the office, style or title of any officer of the Authority shall be that specified in the resolution instead of that specified in the Act of 1937 or any such other enactment, and anything done by an officer as holding the office, or in the style or

title specified in the resolution, shall be valid and effectual for all purposes as it would have been had it been done by the officer in the office and holding the style or title so specified.

(2) As from the date of the passing of any resolution by the Authority under subsection (1) of this section, any reference (whether specific or general) in any enactment or document to the office or title of an officer to whom the resolution relates shall be construed as if the office or title specified in the resolution were substituted for the office or title specified in that enactment or document.

10. All costs, charges and expenses preliminary to and of and incidental to the preparing for, obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Authority. Costs of Act.

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